

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX
LUCIEN KNIGHT,

Plaintiff(s),

VERIFIED COMPLAINT

-against-

INDEX No.

THE CITY OF NEW YORK and P.O. CYJAE J. BRYAN,
(Shield #25396) sued herein in both his official and
individual capacity

Defendant(s).

Lucien Knight ("Plaintiff"), by his attorney The Michael F. Rubin Law Group, PC.,
complaining of the defendants herein, respectfully shows to this Court, and alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights and common law action in which Plaintiff seeks relief for Defendants' violations of Plaintiff's rights, privileges, and immunities secured by 42 U.S.C. §1983, the Fourth and Fourteenth Amendment of the United States Constitution, and the Constitution and laws of the State of New York and the laws of the City of New York.

2. It is alleged that the Defendants, acting jointly and severally, committed a series of unlawful acts that culminated in New York City Police Officer CYJAE BRYAN ("Officer BRYAN") shooting the Plaintiff Lucien Knight, rendering him severely and permanently injured.

3. That the shooting of Mr. Knight, an unprovoked assault and battery, was caused by an NYPD officer who was improperly and negligently supervised, trained, hired and retained, in violation of the plaintiff's civil and common law rights, for which the City

of New York is vicariously liable, and Bryan is directly liable.

4. That the shooting was an unnecessary and excessive use of deadly physical force, when no legally recognized excuse existed that justified the use of such force.

THE PARTIES

5. At all times hereinafter mentioned, plaintiff Lucien Knight (hereinafter “Mr. Knight”), was and still is a resident of the County of the Bronx, in the City and State of New York, and is a “person aggrieved” as that term is defined by The New York City Administrative Code § 8-801.

6. At all times relevant and material herein, the defendant City of New York hereinafter “City” was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

7. At all times relevant and material herein, the defendant P.O. CYJAE BRYAN hereinafter “P.O. BRYAN”, in his official capacity was an employee of the Police Department of the City of New York and is a “covered individual” as that term is defined by The New York City Administrative Code § 8-801.

8. At all times relevant and material herein, the defendant CYJAE BRYAN in his individual capacity was a person residing in the City and State of New York.

ALLEGATIONS PERTAINING TO ALL OF PLAINTIFF’S CLAIMS

9. At all times relevant and material herein, the defendant City operated, maintained, managed, supervised and controlled The New York City Police Department (hereinafter “NYPD”) as part of and in conjunction with its municipal functions.

10. At all times relevant and material herein, the defendant P.O. BRYAN was an

employee of the NYPD and City of New York and was “off-duty” at the time of incident.

11. At all times relevant and material herein, the defendant CYJAE BRYAN was acting in his individual capacity.

12. That at all times hereinafter mentioned and upon information and belief, the defendant City trained, hired, employed and supervised P.O. BRYAN.

13. Upon information and belief, P.O. BRYAN was a graduate of the Police Academy of the NYPD.

14. At all times relevant hereto, the defendant City had the duty to competently and sufficiently train, within the Police Academy and at the Command, Precinct and Patrol levels, the defendant P.O. BRYAN to conform his conduct to a standard for the protection of individuals, such as plaintiff, against the unreasonable risk of harm, unreasonable search, unreasonable seizure, and against excessive force by conducting themselves in such a manner so as to not intentionally, wantonly and/or negligently injure citizens such as plaintiff herein.

15. In addition, at all times relevant hereto, the defendant City had the duty to competently and sufficiently train within the Police Academy and at the Command, Precinct and Patrol levels the defendant P.O. BRYAN, in the protection of the rights of plaintiff under the Constitution of the United States of America and the laws of the State and City of New York, including the New York State constitution.

16. At all times hereinafter mentioned, upon information and belief, the defendant P.O. BRYAN was acting in his capacity as an employee, agent and/or servant of the defendant of City of New York.

17. At all times hereinafter mentioned, the defendant P.O. BRYAN was acting under the color of State law.

18. At all times hereinafter mentioned, the defendant P.O. BRYAN's act constituted State action.

19. At all times hereinafter mentioned, the defendant P.O. BRYAN, was in possession of, and used his NYPD issued service weapon.

20. That even while off-duty, NYPD officers are expected to be ready and fit to serve and to discharge their responsibilities as a police officer, at a moment's notice.

21. That even while off-duty, NYPD officers are expected to comport themselves within the confines of United States law and constitutional mandates, New York State law and constitutional mandates and New York City law.

22. On November 30, 2023, in Bronx County, in the City and State of New York, without probable or just cause to believe that the plaintiff had committed, was committing, or was about to commit any crime, P.O. BRYAN drew his NYPD issued service firearm and shot the plaintiff, Lucien Knight.

23. Mr. Knight sustained a gunshot wound to his left wrist and chest that has resulted in permanent and severe physical injury.

24. At no time prior, during or after the shooting, did the plaintiff herein engage in any act that would suffice to render the use by P.O. BRYAN of deadly physical force justifiable or objectively reasonable.

25. Without probable or just cause, grounds or provocation, P.O. BRYAN had the real or apparent authority to place plaintiff in the fear of imminent contact, placed plaintiff in imminent fear of imminent contact or unlawful touching, caused an unlawful touching in an offensive manner that was excessive, unreasonable, unnecessary and without any privilege or justification, and touched the plaintiff in a hostile, offensive manner without his consent and with the intention of

harmful or offensive bodily contact.

26. By reason of the foregoing, plaintiff was severely injured and suffered, and upon information and belief, will continue to endure and suffer a lifetime of continuous physical pain and anguish.

27. By reason of the foregoing acts by the defendants, in addition to physical pain, plaintiff was caused emotional anguish, psychological distress, and upon information and belief, will continue to suffer same.

**ALLEGATIONS PERTAINING TO PLAINTIFF'S
CLAIMS UNDER STATE LAW**

28. Before the commencement of this action, and within 90 days of November 30, 2023, a Notice of Claim containing the information required by law was duly served upon the defendant City on January 3, 2024.

29. That a hearing pursuant to New York State's General Municipal Law §50-h, was conducted on June 13, 2024.

30. More than thirty (30) days have elapsed since the claims upon which this action is based were presented to the defendant City and said defendant has neglected and/or refused to make payment or adjustment thereof.

31. This action is commenced within one (1) year and ninety (90) days after the accrual of the causes of action alleged in this complaint.

**FIRST CLAIM FOR RELIEF
(FOR ASSAULT AND BATTERY- EXCESSIVE FORCE)
(PURSUANT TO 42 U.S.C §1983 as against P.O. BRYAN)**

32. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

33. Defendant's conduct was excessive, unwarranted, unnecessary and violent and violated plaintiff's rights under the United States Constitution to be free from excessive force by a police officer acting under color of state law.

34. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

SECOND CLAIM FOR RELIEF
(COMMON LAW ASSAULT against P.O. BRYAN)

35. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

36. The defendants are liable for assault to plaintiff.

37. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

THIRD CLAIM FOR RELIEF
(COMMON LAW BATTERY against P.O. BRYAN)

38. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

39. The defendants are liable for battery to plaintiff.

40. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief

as this court may deem just and proper.

FOURTH CLAIM FOR RELIEF
(Negligent Retention against The City)

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs above with the same force and effect as if more fully and at length set forth herein.

42. That The City was negligent, careless and reckless in its supervision of BRYAN, and others, who were responsible for the supervision of BRYAN, in that the defendant City failed to exercise due care and caution in supervising its employees; and failed to properly oversee their agents, servants and/or employees.

43. That the aforesaid occurrence, to wit: the battery upon the plaintiff, and the resulting injuries to mind and body, were caused wholly and solely by reason of the City's negligent supervision of its agents, servants and/or employees without any negligence contributing thereto on the part of the plaintiff.

44. That due to the aforesaid negligent supervision, the plaintiff was injured in mind and body; the plaintiff suffers, and upon information and belief, will continue to suffer great mental and physical pain.

45. That the injuries sustained as a result of the foregoing negligence were foreseeable, and the defendant knew or should have known of the risk of injury.

46. That by reason of the aforesaid, the infant plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus costs, attorney's fees and such other relief as this court may deem just and proper.

FIFTH CLAIM FOR RELIEF
(Negligent Hiring against The City)

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in the

paragraphs above with the same force and effect as if more fully and at length set forth herein.

48. That the City negligently, carelessly and recklessly failed to properly hire BRYAN.

49. That the aforesaid occurrence, to wit: assault and battery upon the plaintiff, and the resulting injuries to mind and/or body there from, were caused wholly and solely by reason of the negligence of the City in failing to observe proper safeguards and procedures in the hiring of BRYAN and its agents, servants and/or employees without any negligence contributing thereto on the part of the plaintiff.

50. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he is incapacitated from his usual daily pursuits caused to him by the actions of the defendants, their agents, servants and/or employees.

51. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action, but well in excess of the jurisdictional limits of all lower courts, plus costs, attorneys' fees and such other relief as this court may deem just and proper.

SIXTH CLAIM FOR RELIEF
(Negligent Training of Employees against The City)

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs above with the same force and effect as if more fully and at length set forth herein.

53. That the City was negligent, careless and reckless in the training of its employees including but not limited to BRYAN, and others, in that the defendant City failed to exercise due care and caution in training its employees; and failed to properly oversee their agents, servants and/or employees.

54. That the aforesaid occurrence, to wit: the battery upon the plaintiff, and the resulting injuries to mind and body, were caused wholly and solely by reason of the City's negligent training

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of its agents, servants and/or employees, including but not limited to BRYAN, without any negligence contributing thereto on the part of the plaintiff.

55. That due to the aforesaid negligent training, the plaintiff was injured in mind and body. The plaintiff suffers, and upon information and belief, will continue to suffer great physical and mental pain.

56. That the injuries sustained as a result of the foregoing negligence were foreseeable, and the City knew or should have known of the risk of injury.

57. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus costs, attorney's fees and such other relief as this court may deem just and proper.

SEVENTH CLAIM FOR RELIEF

(Negligent Supervision of Employees against The City)

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs above with the same force and effect as if more fully and at length set forth herein.

59. That the City was negligent, careless and reckless in the supervision of BRYAN, and others, in that the defendant City failed to exercise due care and caution in supervising its employees; and failed to properly oversee their agents, servants and/or employees.

60. That the aforesaid occurrence, to wit: the battery upon the plaintiff, and the resulting injuries to mind and body, were caused wholly and solely by reason of the City's negligent supervision of its agents, servants and/or employees without any negligence contributing thereto on the part of the plaintiff.

61. That due to the aforesaid negligent supervision, the plaintiff was injured in mind and body and suffers, and upon information and belief, will continue to suffer great physical and mental pain.

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62. That the injuries sustained as a result of the foregoing negligence were foreseeable, and the defendant knew or should have known of the risk of injury.

63. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus costs, attorney's fees and such other relief as this court may deem just and proper.

EIGHTH CLAIM FOR RELIEF
NYC ADMINISTRATIVE CODE §8-803
(as against P.O. BRYAN and City)

64. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

65. That by reason of the foregoing, the plaintiff's right to be free from excessive force was violated.

66. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages where allowed by law, plus costs, attorney's fees and such other relief as this court may deem just and proper.

WHEREFORE, plaintiff demands judgment against the defendants as follows:

On each claim for relief, judgment in an amount in excess of the jurisdictional limits of all lower courts, and plaintiff demands an additional sum of punitive damages where legally allowed against each individual defendant to be determined at the trial of this action; and in the event plaintiff is a prevailing party, attorney's fees; and interest, costs, and such other relief as to this Court shall seem just and proper.

Dated: New York, New York
October 7, 2024

Yours, etc.,

/s/ Michael F. Rubin

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ATTORNEY'S VERIFICATION

I, MICHAEL F. RUBIN, the undersigned, an attorney admitted to practice in the Courts of the State of New York, and say that:

I am the attorney of record for the Plaintiff in the above-entitled action. I have read the annexed Summons and Verified Complaint and know the contents thereof and the same are true, except for those matters stated to be alleged on information and belief, and as to those matters, I believe them to be true. My belief as to those matters therein not stated upon knowledge is based upon the contents of the file maintained in my offices. The reason I make this affirmation instead of Plaintiff, is that Plaintiff does not reside in the county where your affiant maintains his offices.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: October 7, 2024



Michael F. Rubin, Esq.
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